

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979 read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

**Court of Appeal Case No.
CA/HCC/0101/2025
High Court of Kandy
Case No. HC/115/2020**

Paragala Ange Hapan Peligedara
Rasika Wijekumara

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.
R. P. Hettiarachchi, J.**

COUNSEL : **Rukshan Mendis for the Appellant.
Akila Dalpatadu for the Respondent.**

ARGUED ON : **15/07/2026**

DECIDED ON : **21/09/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Appellant was indicted by the Attorney General under Section 355 of the Penal Code for committing one count of the offence of Abduction and one count of Attempted Murder under Section 300 of Penal Code on Ottukal Kirillage Kelvin Prasanna on 20.10.2017.

After service of the indictment to the Appellant and before commencement of the trial, the learned Counsel for the Appellant informed Court that his client is considering to tender an unqualified plea of guilty. Hence, the plea was taken on 07.02.2024. After considering the submissions of both parties, the Learned High Court Judge has sentenced the Appellant as follows:

For the 1st Count the Appellant was sentenced to 02 years rigorous imprisonment with a fine of Rs. 5000/-. This carries the default sentence of 06 months simple imprisonment.

For the 2nd Count, the Appellant was sentenced to 15 years rigorous imprisonment with a fine of Rs.10,000/-. This carries a default sentence of 06 months simple imprisonment.

Additionally, the Appellant was ordered to pay a compensation of 500,000/- to PW1. In default, 01-year rigorous imprisonment was imposed. Further,

the court ordered the sentence imposed on 1st and 2nd counts to run concurrent to each other.

Being aggrieved by the aforesaid sentences, the Appellant preferred this appeal to this Court.

The Learned Counsel for the Appellant informed this court that the Appellant has given his consent to argue this matter in his absence. At the hearing, the Appellant was connected via the Zoom platform from prison.

The Facts of this case which has been revealed at the sentencing submissions *albeit* briefly are as follows:

The victim PW1 was running a welding shop and owned a three-wheeler, which he used to operate for hire. On the morning of the day of the incident, the Appellant had come to his house and offered a hire. Although the Appellant was not someone he knew, he agreed to go on a hire as he did not have enough money for his expenses. The victim had driven the three-wheeler as directed by the Appellant. At one point, two young men had also gotten into the vehicle but had later gotten off after travelling for some time. The victim had suspected that the Appellant had no clear destination, as the Appellant had directed to go through by roads as well.

At a particular place, the Appellant had pulled a knife and cut the victim's neck from behind. After much persuasion, the victim had freed himself, run towards a small town and fallen down. The people of the area had hospitalised him immediately. The Appellant had escaped after the victim ran off from the three-wheeler. The Appellant's bag was found inside the three-wheeler. Upon seeing the bag, the people of the area had identified the Appellant, stating that he would usually carry this bag wherever he goes to engage in this sort of activity.

Further, in the sentencing submission, the learned State Counsel submitted that, although evidence transpired that the Appellant used to engage in this

type of activity, no conviction was reported except for two minor assault cases.

After the incident, the victim had fallen sick, lost his routine job, lost his income and had spent about Rs.500,000/- for his recovery. According to the Medico-Legal Report, the cut of 10cm placed on the front of the neck is categorised as an injury sufficient in the ordinary course of nature to cause death, while the cut of 3cm on the palmar and outer aspect of the proximal end of the right index finger constitute non grievous injuries.

In the mitigation, the Counsel for the Appellant submitted that the Appellant had pleaded guilty at the very first opportunity without wasting the valuable time of the Court. Further, the Appellant is the sole breadwinner of the family as his wife had gone abroad. He has two children to support. Due to his incarceration, the said children are being looked after by their relations. Although evidence transpired that he had committed similar offences earlier, his previous conviction report indicates that he had only committed two minor offences. Therefore, the Counsel for the Appellant prays for mercy on the Appellant and requests the court to impose a lenient sentence.

After the conviction of an Accused person, the discretion in imposing the relevant sentence would lie with that particular Court, while being guided by a number of factors, such as the circumstances under which the offence was committed by the Accused. Where such specific sentencing guidelines would not be available, it would be necessary to discuss the principles that must be followed when imposing sentences.

In the case of **The Attorney General v H.N.de Silva** 57 NLR 121 Per BASNAYAKE, A.C.J.-

" A Judge should, in determining the proper sentence, first consider the gravity of the offence as it appears from the nature of the act itself and should have regard to the punishment provided in the Penal Code or other statute under which the offender is charged. He should also regard the

effect of the punishment as a deterrent and consider to what extent it will be effective. If the offender held a position of trust or belonged to a service which enjoys the public confidence that must be taken into account in assessing the punishment. The incidence of crimes of the nature of which the offender has been found to be guilty and the difficulty of detection are also matters which should receive due consideration. The reformation of the criminal, though no doubt an important consideration, is subordinate to the others I have mentioned. Where the public interest or the welfare of the State (which are synonymous) outweighs the previous good character, antecedents and age of the offender, public interest must prevail. "

In the case of **Don Percy Nanayakkara v The Republic of Sri Lanka** [1993] 1 SLR 71 the Court held that:

"In assessing punishment, the Court has to consider the matter from the point of both the offender and the public. The accused had held high public office and exercised extensive statutory power in conducting public examinations in this country. These examinations have to be conducted fairly and the results declared accurately. Thousands of students who face public examinations, every year, should have complete confidence in the fairness and accuracy of every process of the examinations. The accused has subverted the very basis of this confidence by his conduct in dishonestly showing favour to persons with whom he was acquainted. Therefore, public interest demands that he should be imposed a deterrent punishment."

In the case of **Attorney General v. Mendis** [1995] 1 Sri L.R. 138 it was held:

"In our view once an accused is found guilty and convicted on his own plea, or after trial, the Trial Judge has a difficult function to perform. That is to decide what sentence is to be imposed on the accused who has been convicted. In doing so he has to consider the point of view of the accused on the one hand and the interest of society on the other. In doing so the

Judge must necessarily consider the nature of the offence committed, the manner in which it has been committed the machinations and the manipulations resorted to by the accused to commit the offence, the effect of committing such a crime insofar as the institution or organisation in respect of which it has been committed, the persons who are affected by such crime, the ingenuity with which it has been committed and the involvement of others in committing the crime.”

The Learned Counsel for the Appellant contended that the Learned High Court Judge had not given any consideration to the mitigating circumstances even though the Appellant had tendered an unqualified guilty plea at the very outset of the trial. It was contended that this saved the valuable time of the Court. Further, the Appellant repented for what he had done to the victim. Hence, he submitted that considering the circumstances under which he had pleaded guilty to the charges, the Court ought to have considered the mitigating circumstances in his favour when passing the sentence.

The learned Counsel submitted that 1/3 discount should have been given to the Appellant considering his early guilty plea.

In this case, the Appellant is a father of two children. His wife has gone abroad leaving the two children in the custody of their relations. He is the sole bread winner of the family. He has two previous convictions for committing minor offences. He has been in remand custody since 09.10.2023.

Considering the submissions made on behalf of the Appellant and the prosecution, I consider imposing 15 years for the 2nd count is not appropriate in this case. Hence, considering all the circumstances of the case and especially due to him being in remand custody since 09.10.2023 (prior to the sentence), I consider imposing 08 years rigorous imprisonment is an appropriate sentence to the Appellant in respect of the 2nd count. Hence, the

15-year sentence imposed on the 2nd count is reduced to 08 years rigorous imprisonment. I agree with the sentence imposed on the 1st count. I order the sentences imposed on the first and the second counts to run concurrently. The fine imposed on the first and second counts will remain the same. The compensation imposed on count number two also will remain the same.

Considering further, I order the 08 years rigorous imprisonment be deemed to have commenced from the date of judgment i.e., on 17.01.2025.

The Appeal is dismissed subject to the above variation in the jail sentence.

The Registrar of this Court is directed to send this judgment to the High Court of Kandy along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL